

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution 13-17

Repeal of the Chickasaw Nation Motor Fuels Tax

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, on August 12, 1994, the Chickasaw Tribal Legislature adopted Tribal Law 11-011, creating the Chickasaw Nation Motor Fuels Tax, and

WHEREAS, the Chickasaw Nation has been authorized by the Chickasaw Tribal Legislature to enter into an agreement with the Oklahoma State government regarding motor fuels tax issues, and the terms of that agreement call for all Chickasaw Nation motor fuel outlets to assess state motor fuels taxes on sales of motor fuels at those outlets, and

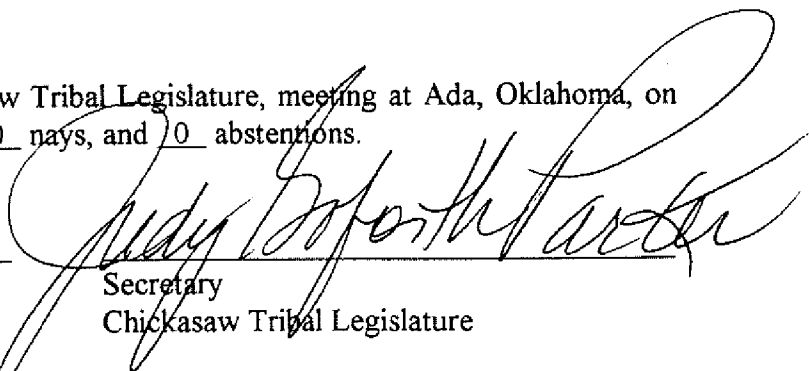
WHEREAS, retaining and assessing the tribal motor fuels taxes on such sales will place all tribal motor fuels outlets at a distinct price disadvantage for competitive purposes.

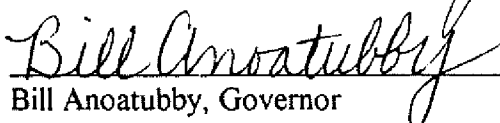
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby repeals Section 10-601, Section 10-602, Section 10-603, Section 10-604, Section 10-605, and Section 10-606 of Article A, Chapter 6 Title 10 of Code of Tribal Laws of the Chickasaw Nation, with such repeal effective August 1, 1996.

BE IT FURTHER RESOLVED, that all unobligated motor fuels tax revenues generated by the tribal motor fuels tax shall be released and made available for use through the normal Tribal General Fund budgeting process.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on August 16, 1996, by a vote of 13 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: **AUG 16 1996**

CHICKASAW TRIBAL LEGISLATURE
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Explanation: This resolution repeals the tribal motor fuels tax. Under the terms of the tribe's agreement with the State of Oklahoma, all tribal motor fuel outlets will begin assessing state motor fuels taxes on October 1, 1996. If the tribal motor fuels tax is not repealed, motor fuels will cost 14 cents to 16 cents per gallon more to sell at tribal motor fuels outlets than at competitors' motor fuel outlets. This resolution merely repeals the tribal motor fuels tax to allow tribal motor fuel outlets to sell at competitive prices.

The resolution also mandates that all unobligated motor fuels tax revenues raised through the tribe's motor fuel taxes will be released and made available for use through the normal Tribal General Fund budgeting process.

Requested By: Governor Bill Anoatubby
The Chickasaw Nation

Presented By: Ron Parker, Chairman
Finance Committee